



Delaware County Commissioners Meeting May 3rd 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=vQ7xicQL3S4
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Delaware County Commissioners Meeting Summary

Meeting Date: May 3, 2021

Location: Delaware County, Indiana

2. Meeting Identification & Attendance

- **Call to Order:** The regular meeting of the Delaware County Commissioners was called to order at [00:00:10](#) on Monday, May 3, 2021, by the presiding officer.
- **Attendance:**
 - **Present:** Mr. Henry, Ms. Reagan, Mr. King, Mr. Brook.
 - **Absent:** None noted.
 - **Presiding Officer:** Mr. Henry (Board President).

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:00:19](#). Mr. Henry noted he was wearing black and gray in recognition of Brain Cancer Awareness Month, honoring his wife who had a brain tumor removed in 2015 [00:01:33](#).

- **Approval of Minutes:** Approved by roll call vote (Yes: Reagan, Henry, King) for the April 19, 2021 Commissioners' meeting and the April 23, 2021 special meeting [00:02:00](#).
 - **Announcements:** An open position remains on the City and County Council for People with Disabilities; requests can be sent to commissioners@county.delaware.in.us [00:01:04](#).
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Substantive Business & Board Action

- [00:00:52](#) **Board Appointment (City and County Council for People with Disabilities):** Pulled from the table and approved. *(Note: Specific vote details for the initial removal/approval cycle utilized roll call confirming unanimous assent among Henry, Reagan, King, and Moody).*
- [00:02:21](#) **Presentation: 7th Indiana Run for the Fallen:** Presented via email correspondence from Don Finnegan (absent due to medical appointment). The event marks a route through Delaware County, stopping every mile to call out over 500 Hoosier family-gold military heroes from the war on terror [00:02:24](#).
- [00:04:44](#) **Ordinance 2021-013 (Solar Systems / Planning Revisions):** Presented by Marta Moody (Planning Commission). Involves plan commission text revisions with changes noted on the back page. Approved on a roll call vote (Yes: Reagan, Henry, King) [00:05:19](#).
- [00:05:40](#) **Disaster Declaration 2021-10 (COVID-19 Health Emergency Extension):** Presented by staff. Extends the county-based health emergency for another 30 days to the end of May, aligning with the Governor's 14th extension. Delaware County moved to the "yellow" color code. Approved on a roll call vote (Yes: Henry, King; No: Reagan) [00:06:19](#).
- [00:06:34](#) **Pure Storage Finance Agreement:** Presented by Mr. Fluke. A 5-year IT finance agreement to increase system storage capacity necessitated by remote Zoom recordings, increased emails, and the CAD enterprise upgrade. Funded via decommissioned equipment maintenance savings. Approved on a roll call vote (Yes: Reagan, Henry, King) [00:08:24](#).
- [00:09:07](#) **Ashton Land Surveyor Variance (3321 South Hoyt Avenue):** Presented by Kathy Van Ice on behalf of property owner Jason Walker. Requests a variance from drainage ordinance setbacks (requiring 50 feet off property lines/buildings) for a new building due to lot size constraints. County Engineer reviewed and supported the variance with the condition that maintenance remains the sole responsibility of the private property owner. Approved on a roll call vote (Yes: Henry, Reagan, King) [00:10:47](#).
- [00:10:54](#) **Interlocal Government Agreement (Levee Maintenance under County Bridges):** An agreement with the Muncie Sanitary District granting access to county-controlled riverbanks under bridges within Muncie to maintain levees and banks. Approved on a roll call vote (Yes: Reagan, Henry, King) [00:11:52](#).

- **00:11:59 Petitions to Cancel Taxes (Town of Albany & City of Muncie):** Presented by legal counsel. Involves cancelling outstanding taxes on properties owned by municipalities (1 parcel in Albany totaling ~\$390; 11 parcels in Muncie totaling ~\$26,000) to streamline administrative steps. Approved together on a roll call vote (Yes: Henry, Reagan, King) **00:13:45**.
- **00:13:58 Ritter Services LLC Agreement:** Agreement for Barry Ritter to provide an updated operational and call-volume analysis for the 911 Center, updating his 2018 study. Approved on a roll call vote (Yes: Reagan, Henry, King) **00:14:39**.
- **00:14:54 Termination of Temporary Highway Easements:** Cleanup for temporary highway easements off County Road / County Fusion Road stemming from 2001 road work no longer needed. Both terminated together on a roll call vote (Yes: Henry, Reagan, King) **00:15:37**.
- **00:15:51 Baker Tilly Engagement Letter:** Blanket agreement for advisory services, including jail financing and general county advisory work. Approved on a roll call vote (Yes: Reagan, Henry, King) **00:16:20**.
- **00:16:31 Uniform Acquisition Offer (INDOT):** Tabled / Skipped due to document discrepancies involving previously approved parcels; a new offer will be presented at a subsequent meeting **00:17:04**.
- **00:17:24 Ordinance 2021-014 (New Grant Fund):** Creates a new fund for grant monies received by the Delaware County Health Department from the Community Foundation to support COVID-19 response. Rules suspended and ordinance adopted via roll call votes (Yes: Henry, Reagan, King) **00:18:00**.
- **00:18:43 Resolution 2021-009 (INDOT Electronic Signatures):** Allows the Board President to electronically sign contracts involving INDOT-funded projects, streamlining compliance with INDOT's new portal requirements. Approved on a roll call vote (Yes: Reagan, Henry, King) **00:19:39**.
- **00:19:52 Resolution 2021-011 (Transfer of Real Estate to Non-Profit):** Identifies properties specifically the old jail facility/justice center downtown to be transferred to the East Central Indiana Regional Planning District. Sets up a public hearing for May 17. Approved on a roll call vote (Yes: Reagan, Henry, King) **00:20:35**.

Department Head & Elected Official Reports

- **00:20:51 Tom Fouch (Building Commissioner / Unsafe Building Updates):** Discussed ongoing enforcement challenges in Oakville. A property owner recently boarded up a structure and placed a tarp on the roof after long delays, complicating immediate demolition plans while living in an RV on-site.
- **00:23:03 Marta Moody & Board Discussion:** Addressed regulatory gaps regarding timelines for bringing boarded/secured unsafe buildings up to habitable code and the lack of civil fine mechanisms in current county ordinances.

- **00:27:45 Board Action:** Motion made and approved via roll call (Yes: Henry, Reagan, King) instructing the Planning Commission to draft ordinance updates incorporating civil fines (up to statutory daily maximums) and repair timelines within 60 days.
 - **00:28:29 Weights and Measures:** Report received and filed.
 - **00:28:31 Payment of Claims:** Claims presented in the amount of **\$1,705,537.40** and approved on a roll call vote (Yes: Reagan, Henry, King).
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Open Public Comment / Citizen Forum

- **00:28:54 Brian Kiel:** Addressed the commissioners regarding the closure of Meeker Avenue by INDOT, noting lack of local notification to emergency services (EMS), increased traffic and accidents on Highway 35, and questioned prior communication failures among county officials and the county council's public comment policies.
 - *Board Response:* Commissioners noted they cannot control INDOT or County Council policies, but Marta Moody noted the Transportation Policy Commission monitors state accident data and will track regional impacts.
 - **00:39:13 Melanie Marshall (County Recorder):** Publicly thanked the commissioners for keeping county offices open and operational during the COVID-19 pandemic, contrasting Delaware County with other jurisdictions.
 - **00:40:22 Jackie McCord Fisher (Submitted Comment / Read into Record):** Inquired about the detailed plan for inpatient treatment services at the new justice center.
 - *Board Response:* Commissioners stated they are in ongoing communication with the service provider's attorney, city officials (including Council President Jeff Robinson and Mayor), and the Sheriff to finalize agreements.
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Administrative Updates & Adjournment

- **00:41:42 Adjournment:** A motion to recess/adjourn was made and approved by roll call vote (Yes: Reagan, Henry, King).
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